

Identity, origin, composition and current control

Privy Council -> Federal Court of India (1937) -> Constitution, 26 Jan 1950
-> Supreme Court inaugurated, 28 Jan 1950.

ARTICLES 124-147, PART V -> apex constitutional + federal + appellate court.
Integrated hierarchy -> Supreme Court -> High Courts -> subordinate courts.
Article 141 promotes national legal uniformity; Articles 226/227/235 preserve High Court authority.

CURRENT CONTROL, 7 SEPTEMBER 2026

Act 14 of 2026, s.2 -> 1956 Act: "thirty-three" replaced by "thirty-seven";
deemed in force 16 May 2026 -> sanctioned strength 38 including CJI.
Official SCI roster -> 34 sitting judges including CJI Surya Kant -> 4 vacancies.
LIMIT: roster/vacancy figures are volatile; re-verify before later use.

Article 124 appointments and the collegium timeline

TEXT -> President appoints; required consultation; other judges require CJI consultation.

CONVENTION -> senior-most SC judge considered fit ordinarily appointed CJI; breached in 1973 (A.N. Ray) and 1977 (M.H. Beg); not express constitutional text.

S.P. Gupta / First Judges (1981) -> consultation not concurrence; executive primacy.

SCAORA / Second Judges (1993) -> judicial primacy; collegium created; CJI view institutional.

Third Judges / Presidential Reference (1998) -> SC collegium = CJI + 4 senior-most judges.

99th Amendment (2014) + NJAC Act, 2014 -> six-member commission model.

SCAORA / Fourth Judges-NJAC (2015) -> design invalid for damaging judicial independence;

collegium restored. LIMIT: no holding that every possible commission is unconstitutional.

Qualifications, oath, tenure, removal and finance

ARTICLE 124 -> Indian citizen + 5 years HC judge OR 10 years HC advocate
OR distinguished jurist in President's opinion; no minimum age; retirement at 65.
ARTICLE 124(6) + THIRD SCHEDULE -> constitutional oath; resignation addressed to President.
ARTICLE 124(4) -> proved misbehaviour/incapacity -> special-majority address in each House
in same session -> presidential removal order. No joint sitting; no SC judge removed.
Judges (Inquiry) Act, 1968 -> notice: 100 LS or 50 RS -> presiding officer -> 3-member inquiry.

ARTICLE 125 -> salary by law; allowances/leave/pension not varied to disadvantage, except Financial Emergency. ARTICLE 112(3)(d)(i) -> judges' salaries charged expenditure.
ARTICLE 146(3) -> Court administrative expenses charged on Consolidated Fund of India.
ARTICLE 124(7) -> former SC judge cannot plead/act before any Indian court or authority.

Temporary judges, independence and accountability

ARTICLE 126 -> President appoints acting CJI when office is vacant or CJI cannot act.
ARTICLE 127 -> ad hoc qualified HC judge requested where quorum unavailable;
CJI acts with presidential consent and after consulting the HC Chief Justice.
ARTICLE 128 -> CJI may, with presidential consent and person's consent, request an eligible retired SC judge or qualified retired HC judge to sit and act.

INDEPENDENCE -> tenure + protected conditions + Article 121 conduct shield
+ Article 129 contempt + Article 50 separation + appointment insulation.

ACCOUNTABILITY -> reasoned judgments + open court + recusal + asset disclosure
+ 1997 Restatement + 1999 in-house procedure + Article 124(4) endpoint.

LIMITS -> in-house process is non-statutory; no exhaustive recusal code; lapsed Bill
is not law.

VERDICT -> independence in decisions must coexist with transparent institutional
process.

Original, writ and transfer jurisdiction

ARTICLE 131 -> exclusive original jurisdiction for listed Union-State/State-State parties

where existence or extent of a legal right is in dispute.

LIMITS -> political disagreement/private party excluded; treaty proviso checked;

Article 262 law may exclude inter-State water-dispute jurisdiction.

ARTICLE 71 -> President/Vice-President election disputes: separate original jurisdiction.

ARTICLE 32 -> guaranteed Supreme Court remedy for Fundamental Rights; five writs.

ARTICLE 226 -> High Court: Fundamental Rights + other legal rights; wider in purpose.

ARTICLE 138 -> Parliament may enlarge Supreme Court jurisdiction by law.

ARTICLE 139 -> Parliament may confer additional writ powers beyond Article 32 purposes.

ARTICLE 139A -> withdrawal of same/substantially same substantial legal questions and inter-High-Court transfer in specified circumstances.

Appeals, special leave, review and curative relief

ARTICLE 132 -> constitutional appeal with High Court certificate.
ARTICLE 133 -> civil appeal under constitutional/statutory conditions.
ARTICLE 134 -> specified criminal appeals.
ARTICLE 134A -> High Court considers certificate after judgment/order.
ARTICLE 135 -> pre-Constitution Federal Court jurisdiction continues where applicable.
ARTICLE 136 -> extraordinary discretionary SLP from court/tribunal;
express Armed-Forces court/tribunal exclusion; not a regular fourth appeal.

ARTICLE 137 -> Supreme Court reviews own judgment/order subject to law and rules.
Rupa Ashok Hurra (2002) -> rare curative petition after review for gross miscarriage,
natural-justice failure or bias; strict certification/screening; not a second ordinary
review.

Record, precedent, complete justice, aid and rules

ARTICLE 129 -> court of record + constitutional contempt power.
Contempt of Courts Act, 1971 -> regulates civil/criminal contempt; cannot extinguish Art 129.

Fair criticism and bona fide public-interest truth protect democratic scrutiny.

ARTICLE 141 -> law declared binds all courts; ratio + bench strength control.

ARTICLE 142 -> complete justice in cause/matter before Court.

Prem Chand Garg (1963) -> cannot violate Fundamental Rights.

A.R. Antulay (1988) -> cannot sustain jurisdictional unfairness under complete justice.

Supreme Court Bar Association (1998) -> supplementary; cannot supplant substantive law.

ARTICLE 144 -> all civil and judicial authorities act in aid.

ARTICLE 145 -> Court rules with presidential approval; 5-judge minimum for Article 143 references and substantial constitutional-interpretation questions.

Advisory jurisdiction and Articles 140, 143, 146, 147

ARTICLE 143(1) -> President may refer public-importance law/fact question; Court may hear and report. ARTICLE 143(2) -> proviso-to-131 dispute; shall hear/report.
Opinion is advisory, not an ordinary binding decree and does not overrule a judgment.

20 NOVEMBER 2025 ASSENT OPINION, 2025 INSC 1333 -> no rigid judge-made assent timeline or deemed assent under Article 142; prolonged unexplained inaction remains reviewable.
LIMIT -> issue-specific advisory control, not a general curtailment of Article 142.

ARTICLE 140 -> Parliament may confer ancillary powers needed for effective jurisdiction.
ARTICLE 146 -> CJI/authorised officer controls appointments of Court staff subject to text;
service rules and charged administrative expenditure protect institutional administration.
ARTICLE 147 -> interpretation references include Government of India Act, 1935 and specified
historical enactments/orders for this Chapter and Chapter V of Part VI.

Judicial review, interpretation and tribunal boundary

JUDICIAL REVIEW -> legality of legislation, executive action and amendment effect; flows through Articles 13, 32, 131-136, 143, 226, 246, 251, 372 and structure.

Kesavananda Bharati (1973) -> Article 368 power cannot damage Basic Structure.

Minerva Mills (1980) -> limited amendment power and Parts III-IV harmony are protected.

I.R. Coelho (2007) -> post-24 Apr 1973 Ninth Schedule insertions face impact review; reviewability does not mean automatic invalidity.

L. Chandra Kumar (1997) -> Articles 226/227 and 32 judicial review are Basic Structure;

tribunals supplement adjudication, but their decisions remain under High Court review.

INTERPRETIVE DISCIPLINE -> text + structure + precedent + purpose; legality, not policy wisdom.

PIL, judicial legislation and open justice

Hussainara Khatoon (1979) -> Article 21 speedy-trial protection for under-trials.
S.P. Gupta (1981) -> representative standing widened for persons unable to approach Court.

EPISTOLARY JURISDICTION -> letters may be treated as petitions after bona fide screening.

Vineet Narain (1998) -> continuing mandamus supports monitored compliance.

Vishaka (1997) -> rights-based interim workplace norms in a legal vacuum; yielded to Sexual Harassment of Women at Workplace Act, 2013.

LIMIT -> court may bridge a rights-threatening vacuum, not become permanent administrator.

Swapnil Tripathi (2018) -> live streaming of suitable constitutional/national-importance proceedings advances open justice, subject to privacy, fair-trial and administrative safeguards.

K.S. Puttaswamy (2017) -> privacy is a Fundamental Right shaping digital-court safeguards.

Procedure, profession, access and current reform

BENCHES -> CJI as master of roster allocates cases/constitutes benches under institutional rules;
larger Bench binds smaller; coordinate disagreement goes to appropriate larger Bench.
SEAT -> Delhi under Article 130; another place by CJI with President's approval.
SUPREME COURT RULES, 2013 -> filing, review, curative and practice procedure.

ADVOCATES ACT, 1961 -> State Bar Councils enrol; BCI sets statutory national standards and hears specified disciplinary appeals. Supreme Court Rules -> Advocate-on-Record system.

ARTICLE 76 / ATTORNEY-GENERAL -> Union chief legal adviser with right of audience; may assist/represent before Court but is not Court officer, collegium member or BCI.

REFORM CHAIN -> legal aid + physical/digital filing help + translation + hybrid hearings
+ neutral citations + e-Courts + cybersecurity/privacy + case-flow management
+ disciplined SLP admission + stronger High Courts. No unsupported live pendency total.

Traps, PYQ routes and examiner-ready answer spine

PRELIMS FIREWALL

38 sanctioned / 34 working / 4 vacancies only on 7 Sep 2026 | retirement 65
CJI seniority convention | collegium judicial creation | removal, not constitutional
impeachment
Article 32 narrower in purpose than 226 | prohibition prevents; certiorari quashes
Article 136 discretionary + Armed-Forces exclusion | Article 143 advisory
Article 142 supplementary, not supplanting | Constitution Bench minimum five
Article 128 sitting != Article 124(7) practice bar | BCI statutory, SCBA association.

PYQ ROUTES -> India-UK | judicial legislation/PIL | women | environmental
constitutionalism
| judicial independence | PIL and powerful Court | constitutional morality | India-USA
collegium.

MAINS SPINE

define role -> classify source (text/statute/judgment/convention/current practice)
-> exact Article/case holding -> mechanism -> consequence -> counterpoint/limit
-> matched reform -> qualified verdict.

VERDICT -> The Supreme Court guards constitutional supremacy only when independent
authority
is joined to reasoned restraint, accountable process, accessible remedies and
executable orders.